

Polish Criminal-Law Strategy Map: Debt Recovery and Leverage Mechanisms

The following research report delivers an exhaustive analysis of the Polish criminal-law mechanisms applicable to a 155,000 PLN debt against a Polish *Jednoosobowa Działalność Gospodarcza* (JDG - sole proprietorship). The analysis maps the statutory offences, procedural pathways, financial implications, and the strategic leverage of initiating criminal proceedings parallel to civil enforcement via the Electronic Writ of Payment (EPU) system.

The evaluation is conducted strictly within the framework of Polish substantive and procedural criminal law, incorporating current prosecutorial practices, Supreme Court jurisprudence, and practical debt recovery (*windykacja*) realities.

Context and Consumer Classification

Before evaluating specific statutory offences, it is critical to determine the transactional status of the creditor, as it influences the availability of certain protective frameworks. The creditor purchased a custom-built computer for personal use, despite operating a JDG in software engineering.

Under Polish civil law, a consumer is a natural person performing a legal act not directly related to their business or professional activity (Art. 22 of the Civil Code - KC). Furthermore, recent amendments to the Civil Code (Art. 385 KC) introduced the concept of a "quasi-consumer." This extends consumer-like protections to a JDG owner entering into a contract directly related to their business, provided the contract does not possess a professional character for that person (determined by the CEIDG registry codes).

Because the computer was purchased for personal use, the transaction classifies as a strict Business-to-Consumer (B2C) relationship. Even if the invoice was issued to the creditor's JDG, the purchase of a single custom-built PC, if demonstrably detached from the core professional software engineering services offered, would likely grant quasi-consumer status. This classification fortifies the argument that the debtor had heightened information duties, making any omission of risk more perilous. However, as demonstrated below, consumer status has a limited impact on triggering the penal apparatus compared to establishing fraudulent intent.

A. Statutory Offences

The Polish Penal Code (*Kodeks karny* - KK) and supplementary statutes provide a stringent framework designed to penalize fraudulent commercial behavior and the intentional frustration of creditor claims. The following is an exhaustive mapping of the hypotheses and plausibly applicable offences, evaluated against the fact pattern of a 155,000 PLN upfront payment for non-delivered custom goods.

Hypothesis 1: Outright Fraud (Art. 286 KK)

Assessment: Strong Fit (Primary Avenue)

Statute and Article: Art. 286 § 1 KK

Statutory Text:

Art. 286 § 1. Kto, w celu osiągnięcia korzyści majątkowej, doprowadza inną osobę do niekorzystnego rozporządzenia własnym lub cudzym mieniem za pomocą wprowadzenia jej w błąd albo wyzyskania błędu lub niezdolności do należytego pojmowania przedsiębranego działania, podlega karze pozbawienia wolności od 6 miesięcy do lat 8.¹

English Translation:

Whoever, for the purpose of achieving a financial benefit, causes another person to unfavorably dispose of their own or another's property by misleading them, or by taking advantage of their mistake or inability to properly understand the action undertaken, is subject to the penalty of deprivation of liberty for between 6 months and 8 years.

Elements the Prosecutor Must Prove:

1. **Financial Benefit (*korzyść majątkowa*):** The perpetrator acted with the goal of enriching themselves or a third party. The receipt of the 155,000 PLN prepayment unequivocally satisfies this element.
2. **Unfavorable Disposition (*niekorzystne rozporządzenie mieniem*):** The victim transferred funds. Polish jurisprudence dictates that an unfavorable disposition occurs the moment the victim undertakes an economic decision they would not have made had they known the true state of affairs. It is irrelevant whether the victim suffered an ultimate, unrecoverable loss; the transfer itself, based on false premises, fulfills this element.³
3. **Misleading/Taking Advantage (*wprowadzenie w błąd*):** The debtor created a false impression regarding their intent to deliver, their financial capacity, or the security of the transaction. Silence or the *zatajenie* (concealment) of critical financial distress during contract formation constitutes misleading.²
4. **Direct Intent (*dolus directus*):** This is the paramount evidentiary hurdle. The prosecutor must prove the debtor intended to defraud the creditor *at the exact moment the contract was formed and the money was taken*. The debtor must have known or accepted that delivery was impossible or highly improbable.

Standard Penalty Range: 6 months to 8 years of deprivation of liberty (*pozbawienie wolności*).

Aggravated Forms and Thresholds: Under Art. 294 § 1 KK, if the fraud involves "property of significant value" (*mienie znacznej wartości*), the penalty is elevated to 1 to 10 years of imprisonment. Art. 115 § 5 KK defines "significant value" as exceeding 200,000 PLN at the time of the deed. Because the debt is 155,000 PLN, the aggravated form does not apply, and the basic type under Art. 286 § 1 KK governs the case. A "case of lesser significance" (*wypadek mniejszej wagi*) under Art. 286 § 3 KK reduces the penalty to a fine, restriction of liberty, or imprisonment up to 2 years, but a 155,000 PLN loss is generally considered too high for this leniency.⁵

Statute of Limitations: 15 years from the commission of the crime (Art. 101 § 1 pkt 2a KK), extended by an additional 10 years if a formal investigation is initiated against a specific person within that period (Art. 102 KK).

Prosecution Type: *Ścigane z urzędu* (Public prosecution). Once the prosecutor is notified, they are obliged under the legality principle to investigate, though the victim must initiate the process by filing a complaint.

Evidentiary Patterns in Polish Courts:

Polish courts meticulously distinguish between a civil breach of contract (a failed business venture) and criminal fraud. To establish *dolus directus*, prosecutors analyze the "timeline of finances" (*oś czasu finansów*). Authorities will subpoena bank records, BIK/KRD (credit registries), and tax records. If the debtor's accounts were already frozen by bailiffs, if they had overwhelming pre-existing debts, or if the Hong Kong supplier had demonstrably ceased operations *before* the 155,000 PLN payment was accepted, courts routinely infer a direct intent to defraud. Conversely, if the debtor was highly solvent at the time of payment, forwarded the funds in good faith, and the supplier's collapse was a subsequent, unforeseeable event, courts will classify it as a purely civil business risk.

Honest Probability Assessment:

Moderate to Strong. The fact that the debtor took 100% upfront for a high-value order and subsequently claimed to have filed for bankruptcy suggests systemic illiquidity. If forensic accounting reveals the 155,000 PLN was never sent to Hong Kong but used to patch the debtor's local liabilities, an Art. 286 KK charge is highly probable.

Hypothesis 3: Pre-bankruptcy Creditor Crimes (Art. 300–302 KK)

Assessment: Strong Fit (Contingent on post-default financial maneuvering)

Statute and Article: Art. 300 § 1 and § 2 KK (Frustration of Creditor Claims)

Statutory Text:

*Art. 300 § 1. Kto, w razie grożącej mu niewypłacalności lub upadłości, udaremnia lub uszczupla zaspokojenie swojego wierzyciela przez to, że usuwa, ukrywa, zbywa, darowuje, niszczy, rzeczywiście lub pozornie obciąża albo uszkadza składniki swojego majątku, podlega karze pozbawienia wolności do lat 3.*⁷

*Art. 300 § 2. Kto, w celu udaremnienia wykonania orzeczenia sądu lub innego organu państwowego, udaremnia lub uszczupla zaspokojenie swojego wierzyciela przez to, że usuwa, ukrywa, zbywa, darowuje, niszczy, rzeczywiście lub pozornie obciąża albo uszkadza składniki swojego majątku zajęte lub zagrożone zajęciem... podlega karze pozbawienia wolności od 3 miesięcy do lat 5.*⁸

English Translation:

§ 1. Whoever, in the event of impending insolvency or bankruptcy, frustrates or reduces the satisfaction of their creditor by removing, hiding, disposing of, donating, destroying, genuinely or fictitiously encumbering, or damaging components of their property, is subject to the penalty of deprivation of liberty for up to 3 years.

§ 2. Whoever, for the purpose of frustrating the execution of a ruling of a court or other state organ, frustrates or reduces the satisfaction of their creditor by removing... components of their property seized or threatened with seizure... is subject to the penalty of deprivation of liberty for between 3 months and 5 years.

Elements the Prosecutor Must Prove:

1. **Impending Insolvency/Bankruptcy:** The debtor was objectively facing financial ruin when the asset manipulation occurred. Crucially, actual insolvency is not required; the mere high probability (*zagrożenie*) of insolvency suffices.¹⁰

2. **Action Diminishing Assets:** The debtor actively moved, hid, or sold assets below market value, or placed fictitious encumbrances on them.
3. **Frustration of Satisfaction:** The creditor's ability to recover the debt was objectively hindered or reduced. For § 2, the assets must be seized or "threatened with seizure" (e.g., a pending civil lawsuit or EPU claim).

Standard Penalty Range: Up to 3 years (basic form) or 3 months to 5 years (aggravated form aimed at evading a court ruling). If many creditors are harmed (three or more), the penalty is 6 months to 8 years (Art. 300 § 3 KK).¹⁰

Prosecution Type: The basic form (§ 1) requires a motion by the victim (*wnioskowe*). The aggravated forms (§ 2 and § 3) are prosecuted ex officio (*z urzędu*).

Statute of Article 301 and 302 KK Context:

- **Art. 301 KK (Fraudulent Bankruptcy):** Penalizes a debtor who creates new corporate entities and transfers assets to them to avoid creditors.¹¹ If the JDG owner secretly shifted their operations and inventory to a newly formed sp. z o.o. registered to a family member, this applies.
- **Art. 302 KK (Favoring Creditors):** Penalizes a debtor who, lacking sufficient assets to satisfy all creditors, selectively pays off some to the detriment of others.¹⁰ If the debtor used the 155,000 PLN not for the Hong Kong supplier, but to quiet down earlier aggressive creditors, this offence is triggered.

Honest Probability Assessment: Strong. Given the debtor's claim of seeking bankruptcy protection and the ongoing EPU proceeding (which places their assets under "threat of seizure"), any current movement of funds out of their active accounts constitutes an Art. 300 § 2 KK violation. Supreme Court jurisprudence emphasizes that such actions must be intentional (*zamiar bezpośredni*), aimed specifically at defeating the execution.¹²

Hypothesis 4: Failure to File Bankruptcy in Time (Art. 21 / 373 PU)

Assessment: Applicable, but Admin/Civil, not strictly Criminal for a JDG.

Statutory Framework: Under Polish law, the strict criminal penalty for failing to file for bankruptcy in time (Art. 586 of the Commercial Companies Code - KSH) applies exclusively to representatives of commercial companies (e.g., board members of a sp. z o.o. or S.A.), not to JDG sole proprietors.¹³

However, **Art. 21 and Art. 373 of the Bankruptcy Law (*Prawo upadłościowe* - PU)** impose severe administrative and civil sanctions on a JDG owner. A JDG must file for bankruptcy within 30 days of becoming insolvent (i.e., when they lose the ability to pay mature pecuniary obligations).¹⁴

Consequences:

1. **Business Ban (*Zakaz prowadzenia działalności gospodarczej*):** The bankruptcy court can ban the debtor from running a business or serving on corporate boards for 1 to 10 years.¹⁶
2. **Civil Liability:** The debtor becomes personally liable for any exacerbation of creditor losses caused by the delay.
While not a police matter, notifying the bankruptcy court of the debtor's insolvency

and demanding a business ban is a potent collateral pressure tactic.

Hypothesis 6: Tax / Fiscal Offences (KKS)

Assessment: Moderate Collateral Threat

Statutory Framework: Art. 56 and Art. 62 of the Penal Fiscal Code (*Kodeks karny skarbowy* - KKS).

If the debtor accepted 155,000 PLN and issued a VAT invoice (a pre-payment invoice - *faktura zaliczkowa*), but failed to deliver the goods and refuses to issue a corrective invoice (*faktura korygująca*) to reverse the transaction, the tax authorities (*Krajowa Administracja Skarbowa* - KAS) may scrutinize the operation.

Art. 56 KKS penalizes tax fraud (submitting false declarations exposing tax to depletion).¹⁷ More broadly, Art. 62 KKS penalizes the issuance of defective or "empty" invoices (*puste faktury*). If the debtor invoiced a transaction that effectively never took place and pocketed the VAT, fiscal authorities can initiate a separate, highly aggressive penal-fiscal investigation.¹⁹

Leverage Value: While the creditor does not have standing as an injured party (*pokrzywdzony*) in a KKS proceeding (the State Treasury is the victim), submitting a formal notification (*donos*) to the relevant Urząd Skarbowy forces the debtor to defend against state tax auditors, massively depleting their time and resources.

The Remaining Hypotheses

- **Hypothesis 5 (Unfair Commercial Practices - UOKiK):** Weak fit. While the transaction is B2C, the Office of Competition and Consumer Protection (UOKiK) intervenes exclusively when collective consumer interests (*zbiorowe interesy konsumentów*) are violated. A single unfulfilled contract, even a high-value one, is viewed as an individual dispute and will not trigger UOKiK's administrative apparatus unless the creditor can demonstrate that the debtor systematically operates a wide-scale scam affecting dozens of consumers.
- **Art. 296 KK (Breach of Trust / Fiduciary Endangerment):** Not Applicable. This article requires the perpetrator to be bound by a specific statutory or contractual duty to *manage* the property affairs (*zajmowanie się sprawami majątkowymi*) of the victim (e.g., a CEO managing a corporation, a broker managing a fund).²¹ A standard sales contract, even for custom pre-paid goods, does not establish a fiduciary management mandate under Polish criminal law.
- **Art. 297 KK (Credit/Subvention Fraud):** Not Applicable. Pertains to defrauding banks or public subsidy programs.²³
- **Art. 304 KK (Exploitation/Usury):** Not Applicable. Pertains to forcing a party into a highly disadvantageous contract due to their forced situation (usury).

B. The "Reckless Handling of Customer Money"

Question (Hypothesis 2)

The creditor asks a fundamental question: *Does Polish law impose any criminal duty on a merchant who takes substantial pre-payment for goods not yet acquired, in respect of how*

that pre-payment is handled (segregation, escrow, disclosure)?

The definitive answer is no. This theory does not have a basis as a standalone criminal offence in Polish law; it is primarily a moral intuition relegated to civil liability.

1. The Lack of Statutory Escrow Duties:

Unlike regulated professions (notaries, lawyers) or specific sectors (real estate developers under the *Ustawa deweloperska*, payment institutions), standard retail and B2B merchants operating a JDG have no statutory duty to segregate customer pre-payments. Once the 155,000 PLN hit the debtor's account, it legally became the merchant's general working capital. There is no criminal mandate to place funds in an escrow account (*rachunek powierniczy*), insure the upstream supply chain, or utilize Letters of Credit.

2. Custom vs. Off-the-Shelf Goods:

The distinction does not alter the criminal analysis. Taking a prepayment for a custom build is a standard civil contract for a specific work (*umowa o dzieło* or *umowa sprzedaży*). The risk of supplier failure is borne by the merchant civilly, but poor risk management is not a crime.

3. The "Duty to Inform" and Pre-Contractual Deceit:

The only avenue to criminalize this behavior is to frame the omission of risk as an *introduction into error* (*wprowadzenie w błąd*) under the general fraud statute, Art. 286 KK.

- If a healthy company takes a prepayment, forwards it uninsured to a historically reliable foreign supplier, and that supplier unexpectedly vanishes, it is a catastrophic business failure. The resulting inability to refund is a civil breach.
- **However**, if the debtor knew the Hong Kong supplier was highly volatile, financially unstable, or had already defaulted on previous shipments, and yet the debtor actively presented the transaction to the creditor as secure and routine to secure the 155,000 PLN prepayment, this crosses into criminal fraud. The deceit lies in manufacturing a false impression of transaction safety.⁶ Furthermore, if the debtor's own JDG was already insolvent, concealing this financial ruin from a consumer paying upfront is definitively classified as criminal deceit.²

4. Misdemeanour Fallback (*Wykroczenie*): There is an offence in the Misdemeanour Code (*Kodeks wykroczeń* - KW), specifically Art. 121 KW (*szalbierstwo*), which penalizes defrauding someone of small services or food (e.g., dining and dashing). However, this is strictly limited to minor values and specific categories. A 155,000 PLN hardware transaction falls entirely outside the scope of misdemeanours; it is either a felony (*przestępstwo*) under the Penal Code or a pure civil dispute.⁴

Conclusion on Hypothesis 2: The narrative must avoid complaining about "poor supply chain management." To weaponize the criminal system, the complaint must allege that the debtor's business was likely a facade or already functionally bankrupt, and that the promise to procure the goods was a sham designed to inject illicit liquidity into a failing enterprise (Art. 286 KK).

C. The Procedure — Filing and Beyond

Initiating the criminal track in Poland requires strategic precision. Under the legality principle (*zasada legalizmu*, Art. 10 KPK), prosecutors are strictly obliged to investigate credible notifications of crime. However, poorly drafted complaints regarding commercial debts are routinely dismissed at the threshold as "civil disputes" (*spór o charakterze cywilnoprawnym*).

1. Where and How to File

Jurisdiction: The complaint should be filed with the District Prosecutor's Office (*Prokuratura Rejonowa*) competent for the location where the crime was committed. For internet fraud, this is typically where the perpetrator acted or where the effects occurred (the creditor's bank location). Given the debtor's virtual office in Kraków, **Prokuratura Rejonowa**

Kraków-Śródmieście (or the equivalent local district) is the standard venue.²⁵ It can also be filed at any police station, which will forward it to the correct unit.

Required Form: The *zawiadomienie o podejrzeniu popełnienia przestępstwa* does not require a rigid statutory form, but must contain standard procedural elements (Art. 119 KPK): designation of the authority, identity of the applicant, a detailed description of the act, justification, and signature.²⁶ It can be filed in writing via registered mail or digitally via ePUAP.

Language and Translation: The complaint itself **must be in Polish** (Art. 71 § 1 Law on Common Courts). The creditor cannot file the main complaint in English. However, supporting exhibits (emails, invoices, contracts) can be attached in English. While the prosecutor has the power to order sworn translations (*tłumaczenie przysięgłe*) at the State's expense during the investigation, providing sworn translations upfront heavily accelerates the initial assessment and prevents early dismissal.

Required Attachments:

- Proof of payment (bank transfer confirmation).
- The order confirmation/contract from gpucomputer.pl.
- The pre-court demand for payment (*wezwanie do zapłaty*) with proof of delivery.
- EPU filing confirmation (Nc-e 552126/26).
- All correspondence, particularly the email detailing the Hong Kong supplier collapse and bankruptcy claims.
- CEIDG extracts proving active business status despite bankruptcy claims.

2. Browser-Agent Prompt for E-Filing

Code snippet

Task: Submit a formal criminal complaint via Polish ePUAP portal

URL:

<https://epuap.gov.pl/wps/portal/strefa-klienta/katalog-spraw/sprawy-ogolne/ogolne-sprawy>

[urzedowe-2/pismo-ogolne-do-podmiotu-publicznego-stara](#)

Click the blue button labeled "Załatw sprawę" (Handle the matter)

Authenticate using the provided Profil Zaufany (Trusted Profile) credentials or MojeID

Banking login

3. In the form field labeled "Wybierz urząd lub instytucję, do której składasz pismo" (Select the office/institution), type "Prokuratura Rejonowa Kraków-Śródmieście" and select the exact match from the dropdown.

4. In the field "Rodzaj pisma" (Type of letter), select "Inne pismo" (Other letter).

5. In the field "Tytuł pisma" (Title of the letter), input: "Zawiadomienie o podejrzeniu popełnienia przestępstwa z art. 286 § 1 KK oraz art. 300 KK".

6. In the main text box "Treść pisma" (Content of the letter), paste the Polish legal text provided in the variable (POLISH COMPLAINT TEXT).

7. Locate the "Załączniki" (Attachments) section. Click "Dodaj załącznik" (Add attachment) and upload the PDF documents provided in the variable (EVIDENCE PDFS).

8. Click "Dalej" (Next) to preview the document.

9. Click "Podpisz i wyślij" (Sign and send) using the Profi Zaufany SMS authorization code.

10. Extract and return the final confirmation number (Urządowe Poświadczenie o przedłożeniu - UPP) and save the confirmation PDF.

3. The Role of the Injured Party (*Pokrzywdzony*)

Upon filing, the creditor formally acquires the status of *pokrzywdzony* (injured party) under Art. 49 KPK. This grants powerful procedural rights:

- **Access to Files (Art. 156 KPK):** The right to request access to the investigation files, providing insight into the debtor's police statements and bank records (subject to prosecutor approval during the preparatory phase).
- **Evidentiary Motions:** The right to submit motions to interrogate specific witnesses or secure specific bank accounts.
- **Presence at Interrogations:** The right to be present (often via legal counsel) during the interrogation of the debtor and witnesses.
- **Auxiliary Prosecutor (*Oskarżyciel posiłkowy*):** If the prosecutor drafts an indictment, the creditor can act as an auxiliary prosecutor in court, actively questioning the defendant and demanding restitution.

4. Overcoming Dismissals (*Zażalenie*)

Because economic crimes require complex proof of intent, overwhelmed prosecutors frequently issue a decision refusing to initiate an investigation (*postanowienie o odmowie wszczęcia śledztwa*), stating the matter is purely civil.

The creditor has a strict **7-day deadline** from receiving the decision to file an interlocutory appeal (*zażalenie*) to the competent court (Art. 306 KPK). The appeal must meticulously argue that the prosecutor failed to investigate the debtor's financial state at the time of contract formation (the *dolus directus*). Courts frequently overturn lazy prosecutorial refusals, forcing them to conduct a real investigation.

5. Timeline Expectations and Physical Presence

- **Initial Review:** Within 30 days, the prosecutor will either open an investigation (*śledztwo/dochodzenie*) or issue a refusal.
- **Investigation Phase:** Once opened, police evidence gathering (subpoenas, interrogations) takes 3 to 12 months.
- **Trial Phase:** If indicted, court proceedings take 1 to 3 years.
- **Physical Presence:** The creditor will likely be summoned to Poland **once** to give witness testimony before the police or prosecutor during the investigation phase. Remote testimony via international legal assistance is legally possible but heavily delays the process (by several months) and is logistically complex. The creditor can limit their travel by appointing a Polish lawyer-proxy (*pełnomocnik*), who will handle all written correspondence, file access, and trial representation.

6. Powództwo Adhezyjne (Adhesion Action)

Historically, victims could file a civil claim within the criminal process (*powództwo adhezyjne*). This mechanism has been effectively abolished and replaced by a simpler, superior mechanism: **the motion for restitution** (*wniosek o naprawienie szkody* under Art. 46 KK).²⁷ The creditor simply files a motion, and the criminal court, upon conviction, automatically orders the debtor to repay the 155,000 PLN without the need for a separate civil trial.

D. Costs to the Creditor

Initiating the criminal track is highly cost-effective compared to civil litigation because the State assumes the financial burden of investigation (forensic accounting, subpoenas, police time).

Cost Category	Estimated Cost Range	Description
Filing Fee	0 PLN	Submitting a criminal complaint (<i>zawiadomienie</i>) is free of state fees.
Lawyer (Drafting Complaint)	1,500 – 3,500 PLN	Drafting a highly technical, evidence-backed complaint framed to survive initial prosecutorial scrutiny and establish <i>dolus directus</i> .
Lawyer (Full Representation)	5,000 – 15,000+ PLN	Retaining a <i>pełnomocnik</i> for the entire investigation and trial. Includes attending police interrogations, filing appeals (<i>zażalenie</i>), and court advocacy. ²⁸

Sworn Translations	50 – 80 PLN per page	Required for any English documentation (contracts, emails) to be formally admitted as evidence.
Travel Costs	Variable	Flight/accommodation for 1 required personal appearance in Poland for formal witness testimony.
Time Investment	10 – 20 hours	Gathering evidence, reviewing lawyer drafts, and providing testimony.
Hidden Costs	Minimal	The State pays for financial experts or police forensics. If the creditor loses, there are no "adverse party costs" in a public prosecution.

E. Consequences for the Debtor

If the prosecutor finds sufficient evidence and brings charges, the pressure on the debtor scales dramatically, affecting their personal liberty, financial standing, and commercial viability.

1. Sentencing Patterns (Art. 286 KK and Art. 300 KK)

For a first-time offender committing a 155,000 PLN fraud (which falls below the 200,000 PLN aggravated threshold), actual incarceration is rare. Polish courts overwhelmingly favor **suspended sentences** (*warunkowe zawieszenie wykonania kary*) paired with a probationary period and severe financial obligations.

- **Typical Sentence:** 1 to 2 years of deprivation of liberty, conditionally suspended for a 2 to 4-year trial period.

2. Criminal Restitution (Art. 46 KK)

This is the ultimate prize of the criminal track. Under Art. 46 § 1 KK, the criminal court is obliged, upon motion, to order the perpetrator to repair the damage in full (*obowiązek naprawienia szkody*).²⁷

- **The Coercive Mechanism:** If the debtor receives a suspended sentence and fails to repay the 155,000 PLN during their probation, the court can lift the suspension and send them to prison. This creates an existential incentive to pay that a civil bailiff cannot match.

3. Criminal Asset Freeze (*Zabezpieczenie Majątkowe* - Art. 291 KPK)

This represents the most critical procedural advantage of the criminal route. During the investigation, the prosecutor has the power to freeze the debtor's bank accounts, real estate, and vehicles to secure future restitution and fines.

- **The Advantage:** Unlike civil *zabezpieczenie*, which requires the creditor to prove a stringent legal interest (*interes prawny*) and often necessitates posting a substantial financial bond, the criminal freeze is executed by the State *ex officio* at zero cost to the victim.²⁹
- **The Caveat:** It can only be applied *after* the debtor transitions from a "person of interest" to a formally charged "suspect" (*podejrzany*), meaning the prosecutor has gathered enough evidence to formally announce charges.²⁹ This takes months of investigation.

4. Ancillary Measures and the Criminal Record (KRK)

A conviction results in a mandatory entry in the National Criminal Register (*Krajowy Rejestr Karny* - KRK). For a JDG owner, whose personal and business identity are legally intertwined, this destroys commercial credibility, severely hampers the ability to secure bank financing, and bars participation in public tenders. Furthermore, under Art. 41 KK, the court can impose a business ban (*zakaz prowadzenia określonej działalności gospodarczej*).

F. Leverage and Strategic Value

Empirical creditor practice in Poland demonstrates that filing a criminal complaint is highly effective against stalling, legally unsophisticated debtors who operate legitimate (albeit failing) businesses. It is less effective against hardened, professional fraudsters who have already hidden their assets.

1. The Signalling Effect and Practical Pressure

The practical impact of a filed complaint is swift. The debtor will receive a formal summons from the local police economic crime unit (*Wydział do Walki z Przestępczością Gospodarczą*) for an interrogation. Police may visit the virtual office, demand accounting records, and subpoena bank histories. For a legitimate JDG owner, this psychological shock often forces them to prioritize settling this specific debt over others to make the criminal problem disappear. If the debtor pays, the creditor can formally state the damage is repaired, which often leads the prosecutor to dismiss or conditionally discontinue the case (*czynny żal / warunkowe umorzenie*).

2. Impact on Consumer Bankruptcy (The Nuclear Option)

The debtor claimed by email to have "filed for bankruptcy protection." If the debtor successfully transitions to consumer bankruptcy (*upadłość konsumencka*), standard civil debts are eventually discharged (*umorzenie zobowiązań*). **However**, under Art. 491(21) of the Bankruptcy Law, **debts resulting from an intentional crime cannot be discharged**.³¹ If the creditor

secures a criminal conviction for fraud (Art. 286 KK), the 155,000 PLN survives the bankruptcy intact. The threat of permanently ruining the debtor's bankruptcy exit strategy represents immense negotiation leverage.

3. Ethical and Legal Limits (The Art. 191 KK Risk)

Using a criminal complaint as a crude extortion tool is a serious crime in Poland.

Art. 191 § 2 KK: *Jeżeli sprawca działa w sposób określony w § 1 w celu wymuszenia zwrotu wierzytelności, podlega karze pozbawienia wolności od 3 miesięcy do lat 5.*³³ (**Translation:**

Whoever uses violence or unlawful threat to enforce the return of a claim is subject to up to 5 years in prison.)

The Vital Distinction: Polish Supreme Court jurisprudence (e.g., Art. 115 § 12 KK) establishes that threatening to initiate criminal proceedings is **not** an unlawful threat (*groźba bezprawna*) if it is intended to protect a right violated by the suspected crime.³⁵

- **Illegal:** "Pay me 155,000 PLN tomorrow, or I will tell the police you are a fraud and destroy your reputation."
- **Legal:** "Given the discrepancies in your explanation regarding the Hong Kong supplier, I suspect financial irregularities. If the funds are not returned by Friday, I will refer the matter to the Prosecutor's Office to investigate potential offences under Art. 286 KK and Art. 300 KK."

All communications must be strictly professional and drafted by legal counsel to remain within this safe harbor.

G. Risks and Downsides to the Creditor

1. **False Accusation (*Fałszywe oskarżenie* - Art. 234 KK):** This risk is mitigated entirely by phrasing the complaint as a *suspicion* ("Zawiadomienie o podejrzeniu popełnienia przestępstwa") rather than a definitive statement of guilt, and by relying on documented, objective facts (the emails, the non-delivery, the CEIDG extracts) rather than fabrications.³⁶
2. **Defamation and Civil Counter-claims:** If the creditor publicizes the criminal complaint (e.g., posting "He is under criminal investigation" on social media or warning other clients on forums), the debtor can sue for infringement of personal rights (*dobro osobiste*) under Art. 24 KC. The complaint must remain strictly between the creditor, the lawyer, and the state authorities.
3. **Time and Attrition:** The primary downside is institutional friction. Prosecutors inherently view business disputes with heavy skepticism. The creditor must be prepared to fund a lawyer to fight initial dismissals and push the police to act.
4. **GDPR / RODO:** Providing debtor data to the police/prosecutor pursuant to a criminal complaint is entirely lawful and exempt from standard GDPR restrictions, as it constitutes the exercise of legal claims and cooperation with state authorities.

H. Coordination with Civil Track

The optimal strategy is **parallel execution**. The criminal track does not replace the civil EPU track; it augments it.

1. **Civil First (Already Executed):** The EPU filing secures the civil limitation period and aims to generate an enforceable title rapidly if uncontested. Once the *nakaz zapłaty* becomes final and receives an enforcement clause (*klauzula wykonalności*), the bailiff (*komornik*) begins asset seizure.
2. **Criminal Second (Immediate Follow-up):** File the criminal complaint now. The police investigation will utilize state powers to uncover assets, hidden bank accounts, and supply chain realities that a civil bailiff cannot easily access.
3. **Synergy and Suspension:** The civil EPU case will not be automatically stayed by a criminal complaint. However, if the criminal case proceeds to trial, the civil court *may* suspend its proceedings awaiting the criminal verdict (Art. 177 § 1 pkt 4 KPC). In practice, uncontested EPU cases conclude much faster than criminal investigations.
4. **The Asset Freeze Substitution:** If the civil bailiff finds nothing (ineffective execution), the criminal track's potential *zabezpieczenie majątkowe* (Art. 291 KPK) becomes the primary vector for securing the remaining hidden assets.

I. Realistic Outcomes — Base Rates

Historical and empirical data regarding Polish prosecutorial practice in economic crimes (under 200,000 PLN) suggests the following baselines:

- **Dismissal Rate:** High initial dismissal rate (~40-50%). Prosecutors frequently issue an *odmowa wszczęcia* (refusal to initiate) within the first 30 days, rapidly dismissing the case as a mere contractual breach. The creditor must be mentally and financially prepared to file a *zażalenie* (appeal) to force the investigation open.
- **Timeline to Charges:** If an investigation is successfully opened, it typically requires 6 to 9 months of evidence gathering (bank secrecy waivers, interrogations) before the debtor transitions to a formal suspect.
- **Conviction Rate:** If the prosecutor ultimately brings an indictment (*akt oskarżenia*) to court, the conviction rate is extraordinarily high (often exceeding 90%), as prosecutors in Poland are highly risk-averse and only indict when the paper trail for *dolus directus* is undeniable.

Integrating Assessment

Recommended Action Plan

The creditor should execute a parallel strategy, utilizing the criminal track as a high-leverage tactical multiplier rather than relying on it for rapid resolution.

1. **Draft a precise Legal Warning:** Engage a Polish lawyer to send a final, meticulously worded pre-litigation warning. It must cite the discrepancies in the Hong Kong supplier narrative, note the continued CEIDG activity despite bankruptcy claims, and state an intent to notify the Prokuratura of suspected Art. 286 KK and Art. 300 KK violations. This utilizes the legal safe harbor of Art. 115 § 12 KK (Cost: ~500 PLN. Leverage: Immediate).
2. **File the Complaint (if ignored):** If the debtor does not settle, the lawyer must draft a formal *Zawiadomienie* focusing exclusively on proving the debtor knew the funds

were lost *before* accepting the 155,000 PLN (establishing fraud intent) and is currently hiding assets (Art. 300 KK). File via ePUAP. (Cost: ~2,500 PLN).

3. **Push the EPU simultaneously:** Maintain momentum in the civil court. Obtain the enforcement clause and deploy the civil bailiff immediately.
4. **Prepare to Appeal:** Budget for filing a *zażalenie* when the prosecutor likely attempts an initial dismissal.

Decision Matrix

Scenario	Indicator	Optimal Criminal-Track Move
Debtor is truly insolvent (Business failed, HK story is true)	Civil bailiff finds nothing; debtor files for bankruptcy.	Maintain Criminal Track. Push aggressively for an Art. 286 KK conviction. This blocks the discharge of the 155,000 PLN debt in the upcoming consumer bankruptcy proceedings (Art. 491(21) PU).
Debtor is actively concealing assets	Business appears active on CEIDG, but accounts are empty; new family businesses emerge.	Expand Complaint. Add Art. 300 KK and Art. 301 KK. The prosecutor has investigative powers (tracking historical bank transfers to relatives) that a civil bailiff completely lacks.
Debtor is merely stalling	Debtor responds to emails, makes partial promises, business continues normally.	File and Leverage. The mere act of being summoned to the police station for an economic fraud interrogation often shocks stalling JDGs into prioritizing this specific refund to avoid a KRK entry.

Single-Paragraph Honest Summary

A Polish lawyer experienced in *windykacja* (debt collection) and *prawo karne gospodarcze* (white-collar criminal law) would advise that while the civil track remains the primary and

fastest procedural tool for recovery, **initiating a meticulously drafted criminal complaint under Art. 286 KK and Art. 300 KK is absolutely worth pursuing as a strategic leverage multiplier.** The financial cost of filing (~3,000 PLN for professional drafting) is negligible compared to the 155,000 PLN at stake, and the criminal track exerts intense psychological pressure via police involvement, unlocks state-backed investigative and asset-freezing powers (Art. 291 KPK) unavailable to civil bailiffs, and crucially, provides the only legal mechanism to prevent the debt from being wiped out should the debtor successfully file for consumer bankruptcy.

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